

**IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CRIMINAL REVISIONAL JURISDICTION)**

Present:

Mr. Justice Md. Shohrowardi

Criminal Revision No. 859 of 2009

Abdul Hai alias Hanu alias Hannan

.....Convict Petitioner

-versus-

The State and another

.....Opposite Party

No one appears

.... For the convict petitioner

Mr. S.M. Golam Mostofa, DAG with

Mr. Md. A. Mannan, AAG

....For the State

Heard on 03.07.2024, 10.07.2024

Judgment delivered on 14.07.2024

On an application filed under section 439 read with section 435 of the Code of Criminal Procedure, 1898 Rule was issued calling upon the opposite party to show cause as to why the impugned judgment and order dated 04.05.2009 passed by Sessions Judge, Noakhali in Criminal Appeal No. 11 of 2009 affirming the judgment and order dated 08.03.2009 passed by Joint Sessions Judge, Noakhali in Sessions Trial Case No. 19 of 2003 arising out G.R. No. 472 of 2001 corresponding Companigonj P.S. Case No. 4 dated 18.04.2001 convicting the petitioner under section 22(Ga) and 19(1)/table 3(Ka) of the Narcotics Control Act, 1990 and sentencing him to suffer rigorous imprisonment for 05(five) years and to pay a fine of Tk. 1000, in default, to suffer simple imprisonment for two months under section 22(Ga) of the said Act, 1990 and sentencing him to suffer rigorous imprisonment for

two years and to pay a fine of Tk. 1000, in default, to suffer simple imprisonment for two months under section 19(1) table 3(Ka) of the said Act should not be set aside and/or such other or further order or orders passed as to this Court may seem fit and proper.

The prosecution case, in short, is that on 18.4.2001 while the informant P.W. 2 S.I. Mohammad Ruhul Amin was conducting a special operation along with his force received secret information that the accused Abdul Hai@ Hanu @ Hannan were selling foreign wine/narcotics keeping those in his house. On the same date at 04.30pm, the informant along with his force encircled the house of the accused situated at Ward No. 4 under Basurhat Pourasahva. The members of the raiding party detained the accused Abdul Hai and recovered 82 bottles of liquor and phensedyl made of India and Myanmar from his dwelling house. At that time, his neighbouring cousin Anowar Hossain fled away to the north. After that, the seizure list was prepared and the witnesses signed the seizure list. On interrogation, the accused Abdul Hai could not show any valid document for keeping the liquor and phensedyl. He admitted in the presence of the public that he brought those liquor and phensedyl to Bangladesh through the Feni and Cox's Bazar border.

P.W. 2 informant Md. Ruhul Amin took up the investigation of the case. During the investigation, he visited the place of occurrence, prepared the sketch map and index, recorded the statements of witnesses under section 161 of the Code of Criminal Procedure, 1898 and after completing the investigation submitted charge sheet against the accused under section 22 (Ga) and 19 (1) table 6 (Kha) of the Narcotics Control Act, 1990 and section 25B of the Special Powers Act, 1974.

After that, the case record was sent to the Special Tribunal No.1 Noakhali. During the trial, the charge was framed against the accused under section 22(Ga) and 19(1) table 6(Kha) of the Narcotics Control Act, 1990 and section 25B of the Special Powers Act, 1974 which was read over and

explained to accused and he pleaded not guilty to the charge and claimed to be tried in accordance with law.

The prosecution examined 9 witnesses to prove the charge against the accused persons. After the examination of prosecution witnesses, the accused was examined under section 342 of the Code of Criminal Procedure, 1898 and he declined to adduce any DW. After concluding the trial, the trial court by judgment and order dated 08.03.2009 convicted the accused under section 22(Ga) and 19(1)/table 3(Ka) of the Narcotics Control Act, 1990 and sentenced him to suffer rigorous imprisonment for 05(five) years and to pay a fine of Tk. 1000, in default, to suffer simple imprisonment for two months under section 22(Ga) of the said Act, 1990 and sentenced him to suffer rigorous imprisonment for two years and to pay a fine of Tk. 1000, in default, to suffer simple imprisonment for two months under section 19(1) table 3(Ka) of the said Act against which the convict petitioner filed Criminal Appeal No. 11 of 2009 before the Sessions Judge, Noakhali who by impugned judgment and order affirmed the judgment and order passed by the trial court against which the convict petitioner obtained the instant Rule.

P.W. 1 Md. Rafiqul Islam stated that he was a member of the petrol party. On 18.4.2001 he went to the place of occurrence and arrested the accused at 04.30pm for keeping import-prohibited liquor. On interrogation, he disclosed that he kept phensedyl and the foreign liquor in his possession. At that time, searching his biti hut recovered 10 bottles of Indian phensedyl, 8 bottles of beer and 62 bottles of foreign liquor kept under the cot of this biti hut. The informant prepared the seizure list at the place of occurrence in the presence of witnesses. During cross-examination, he stated that the recovered alamats were not produced in court. The informant came to know that the recovered narcotics were kept in the house of the accused. The place of occurrence is situated one kilometre north of the Thana. He admitted that he did not enter the house of the accused. At the instance of the accused, the informant brought the recovered narcotics kept under the cot of the biti hut of the accused. At the time of occurrence, a few people came to the place of

occurrence but he could not remember the name of those persons. There were many houses adjacent to the place of occurrence. He could not remember how many biti huts were there in the house of the informant. The informant prepared the seizure list at the place of occurrence in the presence of the witnesses sitting in the yard of the house of the accused. He denied the suggestion that the seizure list was not prepared at the place of occurrence and that no alamat was recovered from the possession of the accused.

P.W. 2 Md. Ruhul Amin is the Sub-Inspector of Police. He stated that on 18.4.2001 he along with the members of the petrol party searched the house of the accused and in the presence of the witnesses at the instance of the accused recovered 80 bottles of foreign liquor and prepared the seizure list. The witnesses signed the seizure list. He proved the seizure list as exhibit-1 and his signature on the seizure list as exhibit-1/1. He proved 80 bottles of liquor as material exhibit-I series. Anowar fled away from the house of the accused. He detained the accused, recovered 80 bottles of foreign liquor and lodged the FIR. He proved the FIR as exhibit-2 and his signature as exhibit-2/1. He took up the investigation of the case. The Officer-in-Charge filled up the FIR form. He proved the signature of the O.C. on the FIR form as exhibit-2/2(2). During cross-examination, he stated that under the leadership of the Officer-in-Charge, he started from Thana and he lodged the FIR with prior approval of the Officer-in-Charge. There was total 8/9 police personnel in the raiding party. He denied the suggestion that he did not search the house of accused Hannan. Today 80 bottles of liquor were not produced in Court. He denied the suggestion that the accused was detained from his electric shop and that he was falsely implicated in the case and that no liquor was recovered from the house of the accused. He denied the suggestion that the material exhibit-I series is not the alamat of the case.

P.W. 3 Constable No. 770 Arab Ali stated that on 18.4.2001 at 04.30pm he along with the informant and the Officer-in-Charge searched the house of the accused and recovered 80 bottles of foreign liquor from the house of the accused. A few bottles of liquor were produced in Court. During

cross-examination, he stated that at the time of searching the house, he was present outside the house. The informant Md. Ruhul Amin recovered the liquor and phensedyl at the instance of the accused from his house.

P.W. 4 Constable No. 267 Abdul Latif stated that on 18.4.2001 he along with the other members of the police force at 3.30 pm under the leadership of Officer-in-Charge raided the house of the accused Hannan and the Officer-in-Charge recovered 80 bottles of liquor and phensedyl from the house of the accused. The recovered materials are produced in Court. During cross-examination, he stated that there was a pucca road beside the house of the accused. 80 bottles of liquor were recovered from the north biti hut of the accused. At the time of the search, 25/30 people were present at the place of occurrence. One person fled away from the place of occurrence. He denied the suggestion that they did not encircle the house of the accused and no alamat was recovered from the possession of the accused. There were total 4 biti huts in the house of the accused. He could not remember in which biti hut the accused resided.

P.W. 5 Md. Kamal Uddin stated that the occurrence took place on 18.4.2001 at 04.30pm at the house of the accused and at the time of searching, the informant recovered 80 bottles of liquor from the possession of the accused. He signed the seizure list. He proved the seizure list as exhibit-1 and his signature as exhibit-1/2. A few bottles of liquor out of 80 bottles are produced in court. During cross-examination, he stated that he signed the seizure list and he is a shopkeeper of Bashurhat Bazar. He admitted that he did not see the recovery of the alamat.

P.W. 6 Mizanur Rahman stated that the occurrence took place on 18.4.2001 at 4.30 pm. 80 bottles of liquor were recovered from the house of the accused in his presence. He signed the seizure list. He proved the seizure list as exhibit-1/3. The recovered liquors were produced in court. During cross-examination, he admitted that he did not see the recovery of the illegal

liquors. Police took his signature on the white paper. He signed the seizure list sitting on the Bakul Rice Mills.

P.W. 7 Abul Hashem stated that the occurrence took place on 18.4.2001 at 4.30 pm at the dwelling house of the accused Abdul Hai. Police recovered the illegal liquor in his presence from the house of the accused. He signed the seizure list. He proved his signature on the seizure list as exhibit-1/4.

PW-8 Constable No. 219 Mojibur Rahman stated that the occurrence took place on 18.4.2001. On the date of occurrence, under the leadership of S.1. Ruhul Amin, he and others went to the house of the accused situated at Ward No. 4, Bashurhut and recovered 8 bottles of beer, 10 bottles of phensedyl, 30 bottles of whisky and 40 bottles of Indian whisky, 18 bottles of whisky made in Myanmar. Police Officer Ruhul Amin prepared the seizure list and took the signatures of the witnesses.

P.W. 9 Md. Ruhul Amin is the investigating officer. He stated that he visited the place of occurrence, prepared the sketch map and index, and recorded the statements of the witnesses under section 161 of the Code of Criminal Procedure, 1898. He proved the sketch map and index as exhibit-3 and his signature as exhibit-3/1. He produced the recovered alamats in Court.

None appears on behalf of the convict petitioner.

The learned Assistant Attorney General, Mr. A. Monnan appearing on behalf of the state submits that the place of occurrence is the house of the convict petitioner. P.W. 2 S.1. Ruhul Amin in the presence of other members of the petrol party recovered 80 bottles of liquor from the house of the accused Md. Abdul Hannan kept under the cot of his biti hut. P.Ws. 1 and 3 to 8 corroborated the evidence of P.W. 2 as regards the recovery of foreign liquor from the house of the accused. Both the courts below on proper assessment of the evidence of the prosecution witnesses convicted the accused. Therefore, he prayed for discharging the Rule.

I have considered the submission of the learned Assistant Attorney General Mr. A. Monnan who appeared on behalf of the state, perused the evidence, impugned judgment and orders passed by the courts below and the records.

In the FIR, it has been alleged that at the time of the search 80 bottles of liquor and phensedyl made of India and Myanmar were recovered from the house of the accused but informant P.W. 2 stated that 80 bottles of liquor were recovered from the house of the accused. Therefore, there is a contradiction in the evidence of P.W. 2 and the FIR as regards the nature of recovered alamats. He did not send the alleged alamats for the report of the chemical examiner under section 50 of the Narcotics Control Act, 1980.

On perusal of the records, it appears that P.W. 2 Md. Ruhul Amin is the informant. He stated that he recovered 80 bottles of foreign liquor from the house of the accused in the presence of the witnesses. Evidence of P.W.2 is corroborated by P.Ws. 3, 5, 6 and 7. P.W. 1 S.I. Rafiqul Islam stated that 10 bottles of Indian phensedyl, 8 bottles of beer and 62 bottles of foreign liquor were recovered from the house of the accused. P.W. 8 Constable Md. Mojibur Rahman stated that 8 bottles of beer, 10 bottles of Indian phensedyl, 30 bottles of whisky, 40 bottles of whisky made in India and 18 bottles of whisky made in Myanmar were recovered from the house of the accused. P.Ws. 1 to 8 are the police personnel. P.Ws. 1 and 8 materially contradicted the evidence of P.W. 2 as regards the nature of the narcotics allegedly recovered from the house of the convict petitioner.

In the absence of any report under section 50 of the said Act, it cannot be held that the narcotics were found in the bottles allegedly recovered from the house of the accused. Furthermore, the evidence of P.Ws. 2, 3, 5, 6 and 7 as regards the nature of the alleged narcotics is materially contradicted by P.Ws. 1 and 8 although they are police personnel.

PW-2 is the informant as well as the investigating officer. He was also examined as P.W. 9. No reason has been assigned by the informant P.W. 2

as to why he did not send the recovered alamats for the report of the chemical examiner. He did not investigate case following the law. Therefore, P.W. 9 Investigating Officer S.I. Md. Ruhul Amin committed misconduct. He is liable to be proceeded departmentally under the relevant laws. The Inspector General of Police is directed to initiate departmental proceeding for committing misconduct against P.W.9 S.I. Md. Ruhul Amin.

In view of the above evidence, facts and circumstances of the case finding, observation and proposition, I am of the view that the prosecution failed to prove the charge against the accused beyond all reasonable doubt.

Both the courts below failed to assess and evaluate the evidence of prosecution witnesses in its true perspective and wrongly decided as to the guilt of convict petitioner Abdul Hai @ Hanu @ Hannan.

I find merit in the Rule.

In the result, the Rule is made absolute.

The impugned judgments and orders passed by the Courts below against the convict petitioner Abdul Hai@ Hanu @ Hannan is hereby set aside.

Send a copy o this judgment to the Inspector General of Police for taking necessary step.

Send down the lower Court's record at once.